

R-264

STATE OF HAWAII
BUREAU OF CONVEYANCES
RECORDED

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/s/CARL T. WATANABE
ACTING
REGISTRAR OF CONVEYANCES

LAND COURT SYSTEM

REGULAR SYSTEM

After Recordation, Return by Mail (xx) Pickup () To:

Mancini, Rowland & Welch
33 Lono Avenue, Suite 470
Kahului, Hawaii 96732

Total No. of Pages: 3

**FIRST AMENDMENT TO THE BYLAWS
OF THE ASSOCIATION OF APARTMENT OWNERS
OF NĀ HALE O MĀKENA**

WHEREAS, MAKENA ESTATES L.L.C. is the developer of that certain condominium project known as Nā Hale O Mākena (the "Project"); and

WHEREAS, MAKENA ESTATES L.L.C. in connection with the development of the Project has filed a Declaration of Condominium Property Regime of Nā Hale O Mākena at the Bureau of Conveyances of the State of Hawaii as Document No. 2000-166795 (the "Declaration") with MAKENA ESTATES L.L.C. being designated as the "Declarant" under the Declaration and also has filed the Bylaws of the Association of Apartment Owners of Nā Hale O Mākena in said Bureau as Document No. 2000-166796 (the "Bylaws"); and

WHEREAS, pursuant to paragraph 16.1 of the Declaration, MAKENA ESTATES L.L.C., as the Declarant, reserved the right to amend the Bylaws at any time

prior to the first recording of a conveyance of an apartment to a party not a signatory to the Declaration; and

WHEREAS, as of the date of this document, no apartments have been conveyed to any party not a signatory to the Declaration and MAKENA ESTATES L.L.C. wishes to make certain amendments to the Bylaws.

NOW, THEREFORE, MAKENA ESTATES L.L.C. does hereby make the following amendments to the Bylaws:

1. The first sentence of Section 8.3(g) of the Bylaws shall be amended by adding the following language to the present end thereof:

PROVIDED, HOWEVER, at no time shall the Owners of any Apartments located above the ground floor of any of the Project buildings remove or replace the carpeting and padding originally installed by the Developer except if the removed or replaced carpeting and padding is replaced with carpeting and padding first approved by the Board of Directors, which carpeting and padding in any event, must be of a quality equal to or better than the carpeting and padding originally installed by the Developer.

2. Section 8.7(f)(i) of the Bylaws shall be amended in its entirety to read as follows:

The parking spaces shall be used only for parking vehicles and for no other purposes. No boats, boat trailers or other trailers or oversized vehicles such as RV's or trucks larger than pickups shall be parked in any parking space or area. Prior to using any parking space, Owners shall register with the managing agent or the resident manager, the make and the license number of all vehicles that will be parked in a parking space. No more than two vehicles per Apartment shall be registered and permitted to park at the Project. At the option of the Board, each owner or occupant registering a vehicle shall place a decal on the vehicle as furnished by the Association.

IN WITNESS WHEREOF, MAKENA ESTATES L.L.C. has caused this document to be executed this 18th day of June, 2001.

MAKENA ESTATES L.L.C.

By Martin W. Quill
Martin W. Quill
Its: Manager Member

STATE OF HAWAII)
) SS:
COUNTY OF MAUI)

On this 18th day of June, 2001, before me appeared MARTIN W. QUILL, to me personally known, who, being by me duly sworn, did say that he is the Manager Member of MAKENA ESTATES L.L.C., a Hawaii limited liability company; that he executed the foregoing instrument as Manager Member of said company, and said Manager Member acknowledged said instrument to be the free act and deed of said company.

Cecilia M. Acidera
Notary Public, State of Hawaii

Print Name: Cecilia M. Acidera

My commission expires: 10/14/2001